

**HIGH COURT OF TRIPURA
AGARTALA**

WP(C) No.585/2024

Vidyarthi Welfare Society, represented by its Secretary, namely, Sri Nilkanta Sinha, registered Office at Abhoynagar, Agartala, District-West Tripura, Pin-799005, presently at Ramnagar Road No.7, P.O.-Ramnagar, P.S.-West Agartala, District-West Tripura, Pin-799002.

..... Petitioner(s).

V E R S U S

1. The State of Tripura, represented by the Secretary, Health & Family Welfare Department, Government of Tripura, New Secretariat Complex, Gurkhabasti, Agartala, P.O.-Kunjaban, P.S.-New Capital Complex, Sub-Division-Sadar, District-West Tripura.

2. The Secretary, Health & Family Welfare Department, Government of Tripura, New Secretariat Complex, Gurkhabasti, Agartala, P.O.-Kunjaban, P.S.-New Capital Complex, Sub-Division-Sadar, District-West Tripura.

3. The Medical Superintendent, AGMC & GBP Hospital, Agartala, District-West Tripura, Pin-799006.

4. The Technical Committee, in c/w e-Tender No.2023_OSD_42576_1, to be represented by its Chairman, Office of the Principal, AGMC & GBP Hospital, Agartala, District-West Tripura, Pin-799006.

.....Official Respondent(s).

5. Best Service Provider, to be represented by its Proprietor, namely, Sri Papan Shib, registered Office at 37, Das Para, Udaipur, P.O. & P.S.-R.K. Pur, District-Gomati Tripura, Pin-799120.

.....Private Respondent(s).

6. The Assistant Municipal Commissioner, Agartala Municipal Corporation, City Centre Building, Paradise Chowmuhan, P.O.-Agartala, P.S.-West Agartala, District-West Tripura, Pin-799001.

.....Proforma Respondent(s).

For Petitioner(s) : Mr. P. Roy Barman, Sr. Advocate,
Mr. Koomar Chakraborty, Advocate.

For Respondent(s) : Mr. Karnajit De, Addl. G.A.,
Ms. Sujata Deb (Gupta), Advocate,
Mr. Arijit Bhaumik, Advocate,
Ms. P. Chakraborty, Advocate.

**HON'BLE THE CHIEF JUSTICE MR. APARESH KUMAR SINGH
HON'BLE MR. JUSTICE S.D. PURKAYASTHA**

Order

07/01/2025

Heard Mr. P. Roy Barman, learned senior counsel assisted by Mr. Koomar Chakraborty, learned counsel appearing for the petitioner, Mr. Karnajit

De, learned Addl. Government Advocate appearing for the respondents-State. Also heard Ms. Sujata Deb (Gupta), learned counsel appearing for the respondent No.5 and Mr. Arijit Bhaumik, learned counsel appearing for the respondent No.6-Corporation.

Reference is made to the order dated 10.12.2024 which is extracted as under:

"Mr. Karnajit De, learned Addl. Government Advocate for the respondents-State, submits on instructions that the work order issued in favour of the respondent No.5 has been terminated as the trade license submitted by him was found to be counterfeit. He further submits that after termination of his work order, fresh work order has been allotted for the same work to be executed within the period 01.12.2024 to 14.06.2025 in favour of the writ petitioner vide work order dated 27.11.2024.

Respondent-Agartala Municipal Corporation has also filed an affidavit corroborating the information supplied under RTI that the trade license enclosed by the respondent No.5 for obtaining the work order in his favour was fake.

Learned counsel for the State seeks time to bring these facts on record and as to what other action is contemplated under the NIT or the work order in question against the respondent No.5.

As prayed for, 2(two) weeks' time is allowed.

Accordingly, let the matter appear on **07.01.2025**."

An affidavit has been filed by the respondents-State containing a show-cause notice dated 14.12.2024 (Annexure-R/3) whereby the respondent No.5 has been asked to show-cause as to why his firm should not be blacklisted as per clause/section III, Clause F(19) of the NIT for a period of 5(five) years effective from 2024-25 onwards.

Ms. Sujata Deb (Gupta), learned counsel appearing for the respondent No.5, submits that a reply has been submitted thereto within time.

Mr. Karnajit De, learned Addl. G.A. appearing for the State, submits that after consideration of the reply, appropriate decision would be taken by the competent authority.

Mr. P. Roy Barman, learned senior counsel for the petitioner, submits that so far as the main issue is concerned, the matter has become

infructuous because after termination of the agreement with the respondent No.5, fresh agreement has been entered with the petitioner to execute the same work.

In that view of the matter, the instant writ petition is disposed of.

Let it be made clear that the respondents-State authorities are free to take a decision on the reply furnished by the respondent No.5 to the show-cause notice dated 14.12.2024 uninfluenced by any observation made by this Court.

Pending application(s), if any, also stands disposed of.

(S.D. PURKAYASTHA), J

(APARESH KUMAR SINGH), CJ

Pulak

PULAK BANIK Digitally signed by PULAK BANIK
Date: 2025.01.08 17:45:31 +05'30'